

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #03	CCRB Case #: 201807778	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/19/2018 1:15 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 3/19/2020	Precinct: 114		
Date/Time CV Reported Wed, 09/19/2018 8:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/19/2018 8:43 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Ryan	21262	952201	PSA 9
2. LT Philip Picciano	00000	939224	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Ryan	Abuse: Police Officer Frank Ryan frisked § 87(2)(b)	A . Complainant Uncooperative
B . POM Frank Ryan	Abuse: Police Officer Frank Ryan searched § 87(2)(b)	B . Complainant Uncooperative
C . LT Philip Picciano	Discourtesy: Sergeant Philip Picciano spoke discourteously to § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On September 19, 2018, § 87(2)(b) filed this complaint with the CCRB via email (**01 Board Review**) on behalf of herself and her cousin, § 87(2)(b) § 87(2)(g)

On September 18, 2018, § 87(2)(b) and her friend § 87(2)(b) were sitting on a bench § 87(2)(b) in Queens. Police Officer Frank Ryan and Sergeant Philip Picciano (Sergeant Picciano has since been promoted to the rank of Lieutenant and is assigned to the 115th Precinct), both of PSA 9, drove up to § 87(2)(b) and § 87(2)(b) exited their vehicle, and approached them. PO Ryan allegedly frisked § 87(2)(b) and took marijuana out of his front pants pocket (**Allegation A and Allegation B: Abuse of Authority, complainant uncooperative**). PO Ryan issued § 87(2)(b) a summons for marijuana. § 87(2)(b) told § 87(2)(b) to give her his cell phone while PO Ryan was in the process of issuing the summons to § 87(2)(b) § 87(2)(b) took the phone from § 87(2)(b) and Sgt. Picciano allegedly said, “Give me the fucking phone,” (**Allegation C: Discourtesy, unsubstantiated**) and took the phone away from her.

The investigation obtained cell phone video (**04 Board Review**) and NYCHA security camera footage (**09-10 Board Review**) of this incident.

§ 87(2)(b) was issued a summons for § 87(2)(b) as a result of this incident (**02 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Frank Ryan frisked § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Frank Ryan searched § 87(2)(b)

§ 87(2)(b) was uncooperative with the investigation and did not provide a statement to the CCRB (**Board Review 13**).

§ 87(2)(b) (**03 Board Review**) stated that she was sitting on a bench § 87(2)(b) in Queens with § 87(2)(b) and § 87(2)(b) § 87(2)(b) stated that nobody in the group was smoking marijuana or drinking alcohol. PO Ryan and Sgt. Picciano approached them in an unmarked vehicle and engaged in casual conversation with them. After approximately five minutes both officers exited their vehicle and approached § 87(2)(b) PO Ryan asked § 87(2)(b) if he had marijuana on him and § 87(2)(b) responded that he had some in his pants pocket. PO Ryan “grabbed” § 87(2)(b) pocket and then reached inside the pocket and took everything out, including marijuana and marijuana rolling paper. § 87(2)(b) did not recall which pocket the marijuana was in.

§ 87(2)(b) declined to provide a statement to the CCRB. § 87(2)(b) stated that she had provided § 87(2)(b) with a cell phone video of the incident and that the video showed everything she knew about the incident (**16 Board Review**).

PO Ryan (**05 Board Review**) stated that he had previous information regarding § 87(2)(b) that § 87(2)(b) was in possession of a firearm. PO Ryan and Sgt. Picciano were conducting general patrol in the Queensbridge Houses and PO Ryan observed a male who he thought was § 87(2)(b) seated on a bench with two females, known to the investigation as § 87(2)(b) and § 87(2)(b). PO Ryan and Sgt. Picciano exited their vehicle so that PO Ryan could confirm that it was § 87(2)(b). PO Ryan observed § 87(2)(b) “fumbling” with his right front pants pocket, and he saw that § 87(2)(b) was attempting to push a baggie of marijuana into his pocket. PO Ryan asked § 87(2)(b) if it was marijuana and § 87(2)(b) responded that it was, but he was not currently smoking it. PO Ryan pulled the bag out of § 87(2)(b) pocket. PO Ryan did not recall if he frisked § 87(2)(b).

Sgt. Picciano did not recall this incident (**06 Board Review**)

NYCHA camera footage did not capture § 87(2)(b) interaction with PO Ryan and Sgt. Picciano (**09-10 Board Review**). Cell phone footage (**04 Board Review**) provided by § 87(2)(b) does not definitively show if PO Ryan frisked § 87(2)(b) and does not definitively show if PO Ryan searched § 87(2)(b). The cell phone footage is 40 seconds long. § 87(2)(b) is seated for the first 7 seconds. Sgt. Picciano is standing in front of § 87(2)(b) and obstructs view of him from 0:11 to 0:29. At 0:29, PO Ryan is seen making motions towards the left side of § 87(2)(b) body, but it is not clear what specific actions he takes. At 0:30, an object is visible in § 87(2)(b) right front pants pocket, but it is not clear what the object is. At 0:38, PO Ryan reaches for the object but does not remove it. The video ends two seconds later.

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **complainant uncooperative**.

Allegation (C) Discourtesy: Sergeant Philip Picciano spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) did not provide statements to the investigation.

§ 87(2)(b) (**03 Board Review**) stated that § 87(2)(b) was handcuffed with his hands behind his back, holding his phone. § 87(2)(b) told PO Ryan and Sgt. Picciano that she would take § 87(2)(b) phone if they were going to arrest him because she is his cousin and could watch it for him. PO Ryan told § 87(2)(b) that she could take the phone, and § 87(2)(b) took the phone from § 87(2)(b). Sgt. Picciano then said, “What are you doing? Give me the fucking phone.”

Sgt. Picciano (**06 Board Review**) did not recall this incident, and did not recall saying, “Give me the fucking phone,” to § 87(2)(b) or any other civilian.

PO Ryan (**05 Board Review**) did not hear Lt. Picciano say, “Give me the fucking phone.”

Cell phone video (**04 Board Review**) provided by § 87(2)(b) shows § 87(2)(b) take § 87(2)(b) phone from him at 35 seconds. At 36 seconds, § 87(2)(b) says, “Why you need his phone?” At 37 seconds Sgt. Picciano says, “You can’t take that,” as he reaches towards § 87(2)(b). The entirety of § 87(2)(b) and Sgt. Picciano’s interaction is not captured on the video and the video ends before Sgt. Picciano takes the phone from § 87(2)(b).

§ 87(2)(g) Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two previous CCRB complaints has been named as a victim in eight allegations (**15 Board Review**).
 - § 87(2)(b)
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- This is the first CCRB complaint to which § 87(2)(b) has been a party (**07 Board Review**).
- PO Ryan has been a member of service for seven years and has been a subject in eleven cases and 23 allegations, of which two were substantiated.
 - 201802463 involved two substantiated allegations of abuse of authority: stop and frisk. The Board recommended formalized training and the NYPD imposed formalized training.
 - PO Ryan has two previous frisk allegations and one previous search (of person) allegation.
- Sgt. Picciano has been a member of service for fourteen years and has been a subject in 16 cases and 42 complaints, of which two were substantiated:

Page 4

CCRB Case # 201807778

- ## Mediation, Civil and Criminal Histories